# CrR 4.7
# DISCOVERY

**(a) Prosecutors Obligations.**

(1) Except as otherwise provided by protective orders or as to matters not subject to disclosure, the prosecuting attorney shall disclose to the defendant the following material and information within the prosecuting attorney's possession or control no later than the omnibus hearing:

(i) the names and addresses of persons whom the prosecuting attorney intends to call as witnesses at the hearing or trial, together with any written or recorded statements and the substance of any oral statements of such witnesses;

(ii) any written or recorded statements and the substance of any oral statements made by the defendant, or made by a codefendant if the trial is to be a joint one;

(iii) when authorized by the court, those portions of grand jury minutes containing testimony of the defendant, relevant testimony of persons whom the prosecuting attorney intends to call as witnesses at the hearing or trial, and any relevant testimony that has not been transcribed;

(iv) any reports or statements of experts made in connection with the particular case, including results of physical or mental examinations and scientific tests, experiments, or comparisons;

(v) any books, papers, documents, photographs, or tangible objects, which the prosecuting attorney intends to use in the hearing or trial or which were obtained from or belonged to the defendant; and

(vi) any record of prior criminal convictions known to the prosecuting attorney of the defendant and of persons whom the prosecuting attorney intends to call as witnesses at the hearing or trial.

(2) The prosecuting attorney shall disclose to the defendant:

(i) any electronic surveillance, including wiretapping, of the defendant's premises or conversations to which the defendant was a party and any record thereof;

(ii) any expert witnesses whom the prosecuting attorney will call at the hearing or trial, the subject of their testimony, and any reports they have submitted to the prosecuting attorney;

(iii) any information which the prosecuting attorney has indicating entrapment of the defendant.

(3) Except as is otherwise provided as to protective orders, the prosecuting attorney shall disclose to defendant's counsel any material or information within the prosecuting attorney's knowledge which tends to negate defendant's guilt as to the offense charged.

(4) The prosecuting attorney's obligation under this section is limited to material and information within the knowledge, possession, and control of members of the prosecuting attorney’s staff.

**(b) Defendant's Obligations.**

(1) Except as is otherwise provided as to matters not subject to disclosure and protective

orders, the defendant shall disclose to the prosecuting attorney the following material and information within the defendant's control no later than the omnibus hearing: the names and addresses of persons whom the defendant intends to call as witnesses at the hearing or trial, together with any written or recorded statements and the substance of any oral statements of such witness.

(2) Notwithstanding the initiation of judicial proceedings, and subject to constitutional limitations, the court on motion of the prosecuting attorney or the defendant, may require or allow the defendant to:

(i) appear in a lineup;

(ii) speak for identification by a witness to an offense;

(iii) be fingerprinted;

(iv) pose for photographs not involving reenactment of the crime charged;

(v) try on articles of clothing;

(vi) permit the taking of samples of or from the defendant's blood, hair, and other materials of the defendant's body including materials under the defendant's fingernails which involve no unreasonable intrusion thereof;

(vii) provide specimens of the defendant's handwriting;

(viii) submit to a reasonable physical, medical, or psychiatric inspection or examination;

(ix) state whether there is any claim of incompetency to stand trial;

(x) allow inspection of physical or documentary evidence in defendant's possession;

(xi) state whether the defendant's prior convictions will be stipulated or need to be proved;

(xii) state whether or not the defendant will rely on an alibi and, if so, furnish a list of alibi witnesses and their addresses;

(xiii) state whether or not the defendant will rely on a defense of insanity at the time of the offense;

(xiv) state the general nature of the defense.

(3) Provisions may be made for appearance for the foregoing purposes in an order for pretrial release.

**(c) Additional Disclosures Upon Request and Specification.** Except as is otherwise provided as to matters not subject to disclosure the prosecuting attorney shall, upon request of the defendant, disclose any relevant material and information regarding:

(1) Specified searches and seizures;

(2) The acquisition of specified statements from the defendant; and

(3) The relationship, if any, of specified persons to the prosecuting authority.

**(d) Material Held by Others.** Upon defendant's request and designation of material or

information in the knowledge, possession or control of other persons which would be discoverable if in the knowledge, possession or control of the prosecuting attorney, the prosecuting attorney shall attempt to cause such material or information to be made available to the defendant. If the prosecuting attorney's efforts are unsuccessful and if such material or persons are subject to the jurisdiction of the court, the court shall issue suitable subpoenas or orders to cause such material to be made available to the defendant.

**(e) Discretionary Disclosures.**

(1) Upon a showing of materiality to the preparation of the defense, and if the request is reasonable, the court in its discretion may require disclosure to the defendant of the relevant material and information not covered by sections (a), (c) and (d).

(2) The court may condition or deny disclosure authorized by this rule if it finds that there is a substantial risk to any person of physical harm, intimidation, bribery, economic reprisals or unnecessary annoyance or embarrassment, resulting from such disclosure, which outweigh any usefulness of the disclosure to the defendant.

**(f) Matters Not Subject to Disclosure.**

(1) *Work Product*. Disclosure shall not be required of legal research or of records, correspondence, reports or memoranda to the extent that they contain the opinions, theories or conclusions of investigating or prosecuting agencies except as to material discoverable under subsection (a)(1)(iv).

(2) *Informants*. Disclosure of an informants identity shall not be required where the informants identity is a prosecution secret and a failure to disclose will not infringe upon the constitutional rights of the defendant. Disclosure of the identity of witnesses to be produced at a hearing or trial shall not be denied.

**(g) Medical and Scientific Reports.** Subject to constitutional limitations, the court may require the defendant to disclose any reports or results, or testimony relative thereto, of physical or mental examinations or of scientific tests, experiments or comparisons, or any other reports or statements of experts which the defendant intends to use at a hearing or trial.

**(h) Regulation of Discovery.**

(1) *Investigations Not To Be Impeded*. Except as is otherwise provided with respect to protective orders and matters not subject to disclosure, neither the counsel for the parties nor other prosecution or defense personnel shall advise persons other than the defendant having relevant material or information to refrain from discussing the case with opposing counsel or showing opposing counsel any relevant material, nor shall they otherwise impede opposing counsels investigation of the case.

(2) *Continuing Duty To Disclose*. If, after compliance with these rules or orders pursuant thereto, a party discovers additional material or information which is subject to disclosure, the party shall promptly notify the other party or their counsel of the existence of such additional material, and if the additional material or information is discovered during trial, the court shall also be notified.

(3) *Custody of Materials*. Any materials furnished to a defendant or defense counsel pursuant to these rules shall remain in the exclusive custody of the defendant or defense counsel and be used only for the purposes of conducting the party's side of the case, unless otherwise agreed by the parties or ordered by the court, and shall be subject to such other terms and conditions as the parties may agree or the court may provide. If defense counsel chooses to share discovery with the defendant, defense counsel shall redact discovery consistent with the

requirements of subsection (h)(3)(C) of this rule and provide a copy of the discovery to the defendant and shall provide a copy of the redacted discovery to the prosecutor. Each defense counsel shall maintain a duplicate copy of discovery furnished to the represented defendant that shows the redactions made in accordance with this rule. The duplicate copy of discovery with redactions shall be kept in the defendant's case file for the duration of the case.

(A) A prosecuting attorney may move the court for an order to modify redactions beyond those made pursuant to this rule by scheduling a hearing within 7 days of the discovery being provided to defense counsel to address what additional redactions beyond those made pursuant to this rule are required.

(B) Defense counsel may move the court for an order to modify redaction conditions.

(C) Defense counsel may provide a copy of discovery to the defendant after making redactions consistent with the following requirements:

(i) *Names*. The names of all persons under the age of 18, the names of all alleged victims, and the names of all witnesses, except law enforcement and experts, shall be redacted to initials.

(ii) *Addresses*. All addresses shall be redacted to show only the state, except for the address of the defendant and the business addresses of law enforcement and professional witnesses.

(iii) *Phone numbers*. All phone numbers shall be redacted in full, except for those of the defendant.

(iv) *E-mail addresses*. All e-mail addresses shall be redacted in full, except for those of the defendant.

(v) *Birth dates*. All birth dates shall be redacted to show only the year of birth, except for the birth date of the defendant and except for when the age is an element of the offense. When age is an element of the offense, the birth date of the person(s) whose age is at issue shall not be redacted.

(vi) *Schools*. The names of all schools attended by witnesses under the age of 18 shall be redacted, except for the name of a school if it is the alleged location of the current charge.

(vii) *Government Issued Identification Numbers*. All government issued identification numbers including, but not limited to, Social Security, driver's license, identification card, and passport numbers, shall be redacted in full, except for those of the defendant. All remaining information on government issued identification documents shall be redacted in accordance with the requirements of this rule.

(viii) *Financial Account Numbers*. Financial account numbers shall be redacted to show only the last four digits.

(ix) *Firearms*. Firearm serial numbers shall be redacted to show only the last two digits.

(x) *Medical, Mental Health, and Treatment Records*. No medical records, mental health records, or substance use disorder evaluations or treatment records shall be provided, except those of the defendant.

(xi) *Child Protective Services Records*.

(a) Child Protective Services (CPS) records relating to the children of the defendant shall be redacted in accordance with the requirements of this rule.

(b) CPS records of all other children that contain information about the defendant shall be redacted in accordance with the requirements of this rule.

(xii) *Autopsy Records*. No autopsy videos or photographs shall be provided. Written autopsy records shall be redacted in accordance with the requirements of this rule.

(xiii) *Witness Interviews*.

(a) Video and audio recordings of witness interviews shall be redacted in accordance with the requirements of this rule, except for child forensic interviews.

(b) Video and audio recordings of child forensic interviews shall not be provided to the defendant absent court order pursuant to RCW 26.44.186.

(c) Transcripts of all interviews, including child forensic interviews, shall be redacted in accordance with the requirements of this rule.

(d) If counsel lacks the technical capacity to redact this information as required, then counsel may not provide that unredacted discovery material to the defendant.

(xiv) *Images and Videos*.

(a) Any portion of an image, photograph, or video that exposes a person's breasts, buttocks, or genitalia shall be redacted.

(b) Any portion of an image, photograph, or video that includes an image of a known minor shall be redacted.

(c) If counsel lacks the technical capacity to redact this discovery as required, then counsel may not provide that unredacted discovery material to the defendant.

(xv) *Cell Phone Business Records*. Cell phone business records belonging to or primarily used by the defendant shall not be redacted. All other cell phone business records shall be redacted in full, absent court order or an agreement of the parties. If counsel lacks the technical capacity to redact this discovery as required, then counsel may not provide that unredacted discovery material to the defendant.

(xvi) *Cell Phone and Computer Search Results*. All material found on phones or computers shall be redacted in accordance with the requirements of this rule. If counsel lacks the technical capacity to redact this discovery as required, then counsel may not provide that unredacted discovery material to the defendant.

(xvii) *Social Media Search Results*. Social media search results for social media accounts shall be redacted in accordance with the requirements of this rule.

(xviii) *Criminal History*. Criminal history records of persons other than the defendant shall be redacted in accordance with the requirements of this rule.

(xix) *Other Evidence*. All other evidence, including but not limited to the evidence listed in this subsection, shall be redacted in accordance with the requirements of this rule. If counsel lacks the technical capacity to redact this discovery as required, then counsel may not provide that unredacted discovery material to the defendant. Such evidence includes the following:

(a) Computer Aided Dispatch (CAD) Reports;

(b) Video of defendant jail calls, jail call log records of persons other than defendant, and transcripts of all jail calls; and

(c) Audio and transcripts of calls to 911.

(4) *Protective Orders*. Upon a showing of cause, the court may at any time order that specified disclosure be restricted or deferred, or make such other order as is appropriate, provided that all material and information to which a party is entitled must be disclosed in time to permit the party's counsel to make beneficial use thereof.

(5) *Excision*. When some parts of certain material are discoverable under this rule, and other parts not discoverable, as much of the material shall be disclosed as is consistent with this rule. Material excised pursuant to judicial order shall be sealed and preserved in the records of the court, to be made available to the appellate court in the event of an appeal.

(6) *In Camera Proceedings*. Upon request of any person, the court may permit any showing of cause for denial or regulation of disclosure, or portion of such showing, to be made in camera. A record shall be made of such proceedings. If the court enters an order granting relief following a showing in camera, the entire record of such showing shall be sealed and preserved in the records of the court, to be made available to the appellate court in the event of an appeal.

(7) *Sanctions*.

(i) If at any time during the course of the proceedings it is brought to the attention of the court that a party has failed to comply with an applicable discovery rule or an order issued pursuant thereto, the court may order such party to permit the discovery of material and information not previously disclosed, grant a continuance, dismiss the action or enter such other order as it deems just under the circumstances.

(ii) Willful violation by counsel of an applicable discovery rule or an order issued pursuant thereto may subject counsel to appropriate sanctions by the court.

Comment

Supersedes RCW 10.37.030, .033; RCW 10.46.030 in part.

[Adopted effective July 1, 1973; Amended effective September 1, 1986; September 1, 2005; September 1, 2007; October 1, 2024; April 29, 2025; September 1, 2026.]